

SOFTWARE DEVELOPMENT AND MAINTENANCE AGREEMENT

Fuellink & Bankers Tankers Management Platform · Ref. PFB2607

This Software Development and Maintenance Agreement (the “Agreement”) is entered into on **25 July 2026** between:

(1) **RWENDO SERVIÇOS LDA**, a company registered in Mozambique with NUIT **401279202**, with its registered office at **Av. Mao Tse Tung No. 1386, Maputo, Mozambique**, represented by **Malcolm Kapondera** (the “Client”); and

(2) **Lomavi Industrie,SU,LDA**, registration number **105077801**, with its registered office at **São Damasso, Matola, Mozambique** represented by Lourenço Vilanculo, CEO (the “Developer”).

The Client and the Developer are each a “Party” and together the “Parties”.

1. SCOPE OF WORK

1.1 The Developer shall design, develop, test and deliver the Fuellink & Bankers Tankers Management and Offset Platform (the “Platform”) as described in the Developer’s Commercial Proposal ref. PFB2607 dated 23 July 2026 (the “Proposal”), which is incorporated into this Agreement as Annex A. In the event of conflict between this Agreement and the Proposal, this Agreement prevails.

1.2 The Platform shall be delivered incrementally, one module per month, in the following order:

Phase	Module delivered
Month 1	User management and permissions (Admin / User roles)
Month 2	Fuellink operational tracking (truck, driver, litres, values)
Month 3	Proof-of-operation file upload and Fuellink module testing
Month 4	Bankers extension (proof of delivery, loaded/delivered difference, supply value editing)
Month 5	Financial/document module (invoices, quotations, receipts, credit notes, digital stamp)
Month 6	Integrated testing, final adjustments, documentation and training

1.3 Each module shall meet the functional and non-functional requirements set out in Section 4 of the Proposal, including the append-only auditability principle, strict file-type validation, HTTPS/TLS across all access points, and responsive browser access on desktop and mobile.

1.4. Any request by the Client to reorder the sequence of modules set out in Clause 1.2, or to add functionality beyond what is described in Annex A, shall be submitted to the Developer. The Developer shall assess the impact on the delivery schedule and fees within five (5) business days and provide the Client the estimate. Reordering of modules already scheduled but not yet started may be accommodated at no additional cost, provided it does not require rework of modules already delivered or accepted. Any additional functionality, or reordering that requires rework of accepted modules, shall be treated as new work and quoted and agreed separately in writing before being carried out.

2. FEES AND PAYMENT

2.1 Monthly fee. The Client shall pay the Developer a single fixed fee of **16,666 MT per month (plus VAT)**, inclusive of all development, project management, support and maintenance services. For the six (6) month development phase this totals 99,996 MT (plus VAT).

2.2 Maintenance. Following expiry of the Warranty Period (Clause 5), the same monthly fee of **16,666 MT (plus VAT)** continues as an ongoing support and maintenance fee, renewable monthly, covering bug fixes, security updates, and technical management of the Client's infrastructure. Development of new features falls outside maintenance and shall be quoted and agreed separately in writing.

2.3 Payment terms. The fee for Month 1 is payable upon signature of this Agreement. Each subsequent monthly fee is payable only after the preceding month's module has been validated in the test environment and accepted by the Client in accordance with Clause 3.

2.4 Subscription costs for the Client's infrastructure (Supabase and GoDaddy) are borne by the Client. The Developer is responsible for their technical management and configuration at no additional charge.

3. DELIVERY AND ACCEPTANCE

3.1 Each module shall be delivered to a test environment for the Client's validation before release to production.

3.2 The Client shall have **seven (7) business days** from delivery to test each module and either (a) accept it in writing (email sufficing), or (b) reject it with a written list of defects. The Developer shall correct notified defects at no additional charge and resubmit the module for acceptance.

3.3 A module not rejected within the review period is deemed accepted.

3.4 Handover. Upon acceptance of each module, the Developer shall deliver the complete source code and technical documentation for that module to a repository controlled by the Client. Final delivery (Month 6) shall additionally include full technical documentation and user training.

4. INTELLECTUAL PROPERTY

4.1 Upon payment of the final development invoice, all intellectual property rights in the Platform's source code, documentation, and related deliverables created under this Agreement shall **transfer to and vest exclusively in the Client**, at no additional charge.

4.2 Pre-existing tools, libraries, and open-source components remain the property of their respective owners; the Developer grants the Client a perpetual, royalty-free licence to use any pre-existing Developer materials embedded in the Platform.

4.3 The Developer shall not reuse, resell, or disclose the Platform's code or the Client's business logic to any third party without the Client's prior written consent.

5. WARRANTY

5.1 The Developer warrants the Platform against defects for a period of **three (3) months** from acceptance of the final module (the "Warranty Period"). During the Warranty Period the Developer shall correct, at no charge, any failure of the Platform to conform to the requirements in Annex A.

5.2 Paid maintenance under Clause 2.2 commences only upon expiry of the Warranty Period.

6. CONFIDENTIALITY AND DATA

6.1 Each Party shall keep confidential all non-public information received from the other Party under this Agreement and use it solely for the performance of this Agreement. This obligation survives termination for three (3) years.

6.2 All business and operational data stored on the Platform belongs to the Client. The Platform shall run exclusively on the Client's own accounts (Supabase and GoDaddy); the Developer shall create no infrastructure outside the Client's control and shall maintain no independent copies of Client data beyond what is required for the performance of this Agreement.

7. TERM AND TERMINATION

7.1 This Agreement commences on the date of signature and continues until completion of the development phase and any maintenance period, unless terminated earlier.

7.2 During the development phase, the Client may terminate at the end of any month with **fourteen (14) days' written notice**, paying only for modules delivered and accepted. In that event the Developer shall hand over all source code and documentation for the modules paid for.

7.3 During the maintenance phase, either Party may terminate with thirty (30) days' written notice.

7.4 Either Party may terminate immediately by written notice if the other Party commits a material breach and fails to remedy it within fifteen (15) days of written notice.

8. GENERAL

8.1 Liability. Neither Party's aggregate liability under this Agreement shall exceed the total fees paid or payable in the twelve (12) months preceding the claim, except in cases of fraud, wilful misconduct, or breach of Clause 4 or 6.

8.2 Delays. If delivery of a module is delayed by more than fifteen (15) business days for reasons attributable to the Developer, the Client may suspend payment until delivery, and the corresponding monthly fee shall be reduced pro rata.

8.3 Governing law. This Agreement is governed by the laws of the Republic of Mozambique. Disputes shall first be addressed through good-faith negotiation; failing resolution within thirty (30) days, they shall be submitted to the competent courts of Maputo.

8.4 Entire agreement. This Agreement, together with Annex A, constitutes the entire agreement between the Parties and supersedes all prior discussions. Amendments are valid only in writing signed by both Parties.

SIGNED by the Parties:

For the Client

Name: Malcolm Kapondera

Title: COO, RWENDO SERVIÇOS LDA

Date: _____

For the Developer

Name: Lourenço Vilanculo Jr

Title: CEO, Lomavi Industrie, Su, LDA

Date: _____

Annex A: Commercial Proposal ref. PFB2607, Lomavi Industrie, dated 23 July 2026 (attached).